

IN THE HIGH COURT OF JUDICATURE AT MADRAS

Vivaan Shah vs The State Of Maharashtra ... on 13 April, 2024

AIR 2024 SC 2376, (2024) 3 DLT 319

Bench: Hima Kohli, J. and Sunita Agarwal, J.

JUDGMENT

Hima Kohli, J.

1. The applicant, Vivaan Shah, has approached this Court under Section 482 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, seeking regular bail in connection with C.R. No. 176 of 2024 registered with Economic Offences Wing, Maharashtra. The offences alleged are punishable under Section 111 of the Bharatiya Nyaya Sanhita (BNS), 2023 and Section 66D of the Information Technology Act, 2000.
2. The prosecution case is that a coordinated digital fraud syndicate caused wrongful loss of Rs. 5.6 Crores between 24-09-2022 and 04-10-2021. The applicant was arrested on 14-12-2023 for allegedly providing logistics and server infrastructure to the prime conspirators.
3. Mr. Sibal, learned Senior Counsel for the applicant, submitted that the investigation is complete and the charge sheet was filed on 18-05-2022. He contends the applicant had no mens rea, and that the CDR and cell-site records relied upon by the prosecution were seized without mandatory certification under Section 63 of the Bharatiya Sakshya Adhiniyam (BSA), 2023.
4. Counsel placed reliance on (2023) 4 SCC 676 in the case of Pankaj Bansal v. Union of India, and on (2011) 1 SCC 694 in the case of Sanjay Chandra v. Central Bureau of Investigation, on the principle that continued custody must not become punitive where trial will take time.
5. Learned APP Ms. Shinde opposed, contending that bank ledger audits and the panchanama dated 12-07-2021 establish the applicant's proximity to the operating nodes, and that Ex. P-14 seizure memo links the leased servers to the applicant.

6. Upon consideration of the charge sheet, this Court finds custodial interrogation has concluded; no direct fund trail touches the applicant's accounts; and trial will take considerable time. Further detention would serve no purpose.

7. The applicant is directed to be released on bail on executing a P.R. Bond of Rs. 50,000/- with one or two local sureties. Bail application is allowed.

Sunita Agarwal, J. - I agree.